BRENDAN NGWA NFORBI
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP Badge #023295), in his individual capacity; JOSE MELANO (CHP Badge #023054), in his individual capacity; and DOES 1 through 10, inclusive,** Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES** (42 U.S.C. § 1983) (1) 4th Amend. -- Judicial Deception; (2) 14th Amend. -- Fabrication of Evidence; (3) 4th Amend. -- Unlawful Arrest; (4) 4th Amend. -- Unlawful Entry; (5) 4th Amend. -- Unlawful Search. **[DEMAND FOR JURY TRIAL]**

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, brings this action against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, and alleges as follows:

INTRODUCTION

1. This is a civil rights action under 42 U.S.C. section 1983 arising from an arrest on November 1, 2024, on the shoulder of Interstate 580 East in Livermore, Alameda County, California. Plaintiff Brendan Ngwa Nforbi, a commercial truck driver holding a Class A Commercial Driver's License (No. F7953179), was parked and asleep in his vehicle when

California Highway Patrol Officers Santiago Meza-Gonzalez and Jose Melano approached. Over the course of two hours -- captured in their entirety on the officers' own dashcam recording (CHP Case No. RJ68845) -- the officers opened the vehicle without consent or warrant, identified the only cup in the vehicle as containing urine, continued the investigation after the basis for their initial suspicion had dissipated, arrested Plaintiff within eighteen seconds of his exercise of the statutory right to decline a voluntary preliminary alcohol screening test, and then generated sworn statements containing material representations that are contradicted by the same recording in the CHP's own custody.

2. After the arrest, Officer Meza-Gonzalez executed under penalty of perjury a DS-367 Officer's Statement and a CHP Arrest-Investigation Report, both of which were used to obtain a blood-draw warrant from a magistrate, to initiate a one-year administrative suspension of Plaintiff's commercial driving privileges, and to refer criminal charges to the Alameda County District Attorney. The DS-367 and arrest report contain at least four representations that are materially contradicted by the dashcam recording: a claimed "strong distinct odor of an alcoholic beverage" that neither officer ever verbalizes on the recording; a characterization of Plaintiff's speech as "slurred" when the recording captures extended coherent conversation; a claim that Plaintiff was "very confused and disoriented" when the recording shows him correctly identifying his location and reading distant signage; and a checked box for "Beverage Present: Yes" when the only liquid the officers found was, in Officer Melano's own contemporaneous words on the recording, "piss." Four days later, CHP itself issued a Penal Code section 851.6 Detention Certificate reclassifying the event as "a detention only, not an arrest" for "insufficient grounds." The Alameda County District Attorney declined to file any charges.

3. Plaintiff brings five claims against Defendants in their individual capacities: judicial deception in support of a blood-draw warrant; deliberate fabrication of evidence; unlawful arrest without probable cause; unlawful warrantless entry into a private vehicle; and unlawful search. Plaintiff seeks compensatory and punitive damages and reasonable attorney's fees under 42

U.S.C. section 1988.

JURISDICTION AND VENUE

4. This Court has original subject-matter jurisdiction under 28 U.S.C. section 1331 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil rights). The claims arise under the First, Fourth, and Fourteenth Amendments to the United States Constitution, as enforced through 42 U.S.C. section 1983.

5. Venue is proper in the Northern District of California under 28 U.S.C. section 1391(b)(2). All events giving rise to this action occurred in Livermore and Dublin, Alameda County, California, within this District.

6. Under Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is appropriately assigned to the San Francisco Division or the Oakland Division.

PARTIES

7. Plaintiff BRENDAN NGWA NFORBI is a natural person and a resident of the County of San Joaquin, State of California. At all relevant times, he held a valid California Class A Commercial Driver's License (No. F7953179) with endorsements for doubles/triples and tank vehicles.

8. Defendant SANTIAGO MEZA-GONZALEZ (CHP Badge #023295) is a sworn peace officer employed by the California Highway Patrol, assigned to the CHP Dublin Area. He was acting under color of state law at all relevant times. He is sued in his individual capacity only.

9. Defendant JOSE MELANO (CHP Badge #023054) is a sworn peace officer employed

by the California Highway Patrol, assigned to the CHP Dublin Area. He was acting under color of state law at all relevant times. He is sued in his individual capacity only.

10. The true names of Defendants DOES 1 through 10 are presently unknown. On information and belief, each participated in, approved, or acquiesced in the conduct alleged herein. Each is sued in his or her individual capacity. Plaintiff will seek leave to amend when their identities are ascertained.

FACTUAL ALLEGATIONS

A. Plaintiff Was Lawfully Parked and Asleep

11. On the evening of October 31, 2024, and into the early hours of November 1, 2024, Plaintiff was driving a rented gray Tesla Model Y eastbound on Interstate 580. Feeling fatigued, he exited active travel lanes and parked on the right shoulder just west of the Isabel Avenue exit in Livermore, Alameda County. He then rested in the driver's seat. He was not driving. No officer observed him in volitional movement of the vehicle.

12. Plaintiff is a professional commercial truck driver. Pulling off the road to rest when fatigued is consistent with federal Hours-of-Service principles and with CHP's own public safety guidance to drowsy motorists.

B. The Officers' Pre-Contact Hypothesis

13. At approximately 00:54:36, the CHP patrol vehicle's dashcam recording activated as it came to a stop behind Plaintiff's parked Tesla. The recording ran continuously through approximately 01:57:10, capturing the entirety of the encounter.

14. At 00:55:53, before either officer had approached the vehicle, Officer Melano remarked on the recording: "It's a rental. Huh." At 00:56:05, both officers approached and peered through the windows with flashlights while Plaintiff remained asleep inside. At 00:56:07, Melano stated: "It wasn't here earlier when we passed by."

15. At 00:56:09 -- before either officer had spoken a word to Plaintiff, before Plaintiff was awake, and before any welfare observation had been made -- Officer Melano stated on the recording: "I think it's booze." That statement, directed at a cup visible through the vehicle window, was formed before any contact with Plaintiff and before any observation of his condition.

C. Warrantless Entry

16. At 00:56:43, Officer Melano opened the front passenger-side door of Plaintiff's vehicle. Plaintiff was still asleep. He had not consented to entry. No warrant had been obtained. No exigent circumstance -- no medical emergency, no ongoing crime, no fire, no destruction of evidence, no hot pursuit -- was present or articulated. The door was opened because Officer Melano decided to open it.

D. The Cup Is Identified as Urine;
the Initial Suspicion Dissipates

17. Between 00:58:49 and 00:59:07, Officer Melano seized the cup from the vehicle interior, smelled it, and identified its contents on the recording:

Melano: "Is it water? No this is piss. This is pee."

Plaintiff: "I don't know what that is."

Melano: "I'm telling you it's piss. It smells like piss."

18. Officer Melano's own contemporaneous identification of the cup's contents as urine is inconsistent with his earlier hypothesis that the cup contained alcohol. Whatever investigative suspicion the cup had generated dissipated at the moment the officer handling it identified it as something other than an alcoholic beverage and said so aloud.

E. Continued Detention, Field Sobriety Exercises, and PAS Advisement

19. The officers did not terminate the encounter. They ordered Plaintiff out of the vehicle onto uneven ground and administered field sobriety exercises. Officer Melano acknowledged on the recording that the ground conditions were not suitable for reliable FST administration and declined to perform certain balance-dependent exercises for that reason.

20. Throughout the encounter, Plaintiff spoke coherently and articulately. The dashcam audio captures him spelling his surname on request, discussing the alternator design of the rental Tesla, explaining CDL fatigue protocols, and correctly identifying his location as Livermore. At no point in over two hours of continuous recording does either officer verbalize any observation of an alcohol odor emanating from Plaintiff.

21. At 01:10:54, Officer Meza-Gonzalez advised Plaintiff that the preliminary alcohol screening ("PAS") test was voluntary: "You're not required to do this." That advisement is legally accurate. Under California Vehicle Code section 23612(i), a PAS is a preliminary investigative tool, and a driver not on DUI probation may lawfully decline it.

F. PAS Refusal and Immediate Arrest

22. Plaintiff declined the PAS test.

23. At 01:11:15 through 01:11:33 -- eighteen seconds after the refusal -- Officer Meza-Gonzalez placed Plaintiff under arrest. No new observation or piece of evidence intervened between the refusal and the arrest. The temporal sequence is captured on the recording.

G. The DS-367 and Arrest Report:
Four Material Contradictions with the Dashcam

24. Following the arrest, Defendant Meza-Gonzalez prepared, executed under penalty of perjury, and submitted to DMV, to the reviewing magistrate, and to the Alameda County District Attorney: (a) a DS-367 Age 21 and Older Officer's Statement; and (b) a CHP Arrest-Investigation Report (Case No. RJ68845).

25. Each document contains representations that are materially contradicted by the dashcam recording:

(a) Odor. The DS-367 and arrest report state Meza-Gonzalez detected a "strong distinct odor of an alcoholic beverage" from Plaintiff. In over two hours of continuous dashcam audio, neither officer verbalizes any observation of an alcohol odor at any point. Officers routinely narrate significant observations on dashcam -- Melano narrates his cup hypothesis (00:56:09), his urine identification (00:58:49-00:59:07), and vehicle details (00:55:53) -- but neither officer narrates detecting an alcohol odor.

(b) Speech. The DS-367 characterizes Plaintiff's speech as "slurred." The recording captures Plaintiff in extended coherent conversation, including spelling his surname

letter-by-letter and discussing mechanical details of the rental vehicle.

(c) Orientation. The arrest report states Plaintiff "seemed very confused and disoriented." The recording captures Plaintiff correctly identifying his location as Livermore and reading distant highway signage.

(d) Beverage. The DS-367 contains a checked box for "Beverage Present: Yes." The only liquid the officers found and discussed on the recording was identified by Officer Melano as urine, not a beverage.

26. The arrest report also omits material facts: that the suspected alcohol in the cup was identified on the recording as urine; that Officer Melano declined to administer certain FSTs due to ground conditions; that Officer Meza-Gonzalez expressly advised Plaintiff the PAS was voluntary; and that no officer had observed Plaintiff driving or in volitional control of the vehicle.

27. Of the four contradictions, the "Beverage Present" entry is the most objectively verifiable: the officers' own contemporaneous words on their own recording identify the only liquid as urine, and the DS-367 checkbox characterizes it as a beverage. The odor, speech, and orientation entries are experiential observations that were not verbalized on the recording; Plaintiff alleges they are materially contradicted by the objective record, and their truth or falsity is a question the recording can help resolve.

H. The Blood-Draw Warrant and Forced Extraction

28. Based on the DS-367 and arrest report, a magistrate authorized a warrant for the involuntary extraction of Plaintiff's blood. Plaintiff was transported to the CHP Dublin Area office, where a blood sample was forcibly drawn pursuant to that warrant. A compelled blood draw is a significant bodily intrusion within the meaning of the Fourth Amendment. Missouri v.

McNeely, 569 U.S. 141, 148 (2013).

29. If the four contradicted representations identified in paragraph 25 are set aside, and if the omitted facts identified in paragraph 26 are restored, the warrant application would have reflected: a commercial driver parked and asleep on a highway shoulder; a cup identified by the investigating officer as urine; coherent, oriented conversation; no verbalized alcohol odor; and refusal of a test the officer had just described as voluntary. Whether those facts, standing alone, would have supported probable cause for a blood-draw warrant is a question that should be resolved on a developed record, not on the pleadings.

I. Booking and Extended Detention

30. Following the blood extraction, Plaintiff was transported to and booked at Santa Rita Jail in Dublin, California. A parole hold was placed based on the arrest report, extending Plaintiff's custodial confinement beyond the initial arrest.

J. CHP's Subsequent Reclassification:
The Penal Code Section 851.6 Detention Certificate

31. On November 5, 2024, the Dublin CHP issued a Detention Certificate under California Penal Code section 851.6, referencing CHP Case No. RJ68845. The Certificate states that Plaintiff's taking into custody "was a detention only, not an arrest" and that he was released under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." By operation of Penal Code sections 849(c) and 849.5, the encounter is thereafter not deemed an arrest but a detention only.

32. The Detention Certificate is a subsequent official reclassification by the arresting agency itself. It does not, standing alone, establish that the arrest violated the Fourth Amendment

at the moment it occurred. It does, however, constitute contemporaneous evidence from the agency best positioned to evaluate the encounter -- evidence consistent with and corroborative of Plaintiff's allegation that the arrest lacked probable cause.

K. The District Attorney's Declination

33. CHP referred charges to the Alameda County District Attorney under Vehicle Code sections 23152(a), 23152(b), and 23578. The District Attorney declined to file any accusatory pleading. No criminal case was initiated.

L. Alias Note and Related Action

34. Plaintiff has appeared in prior court and administrative proceedings arising from this incident under the name variant "Brendan Ngehsi Newanforbi." That is the same individual as Plaintiff in this action. This Complaint uses "Brendan Ngwa Nforbi" throughout except where quoting from a prior record. In a related action in this District, N.D. Cal. Case No. 4:26-cv-05953-ASK, a coordinate Article III judge screened a complaint resting on a substantially overlapping factual record and found it sufficient to proceed under 28 U.S.C. section 1915(e).

M. Damages

35. As a direct and proximate result of Defendants' conduct, Plaintiff has suffered: (a) loss of liberty from custodial confinement at the roadside, at the CHP Dublin Area office, and at Santa Rita Jail; (b) a compelled blood extraction; (c) a one-year administrative suspension of his Class A Commercial Driver's License (Feb. 20, 2025 through Feb. 19, 2026), with an accompanying one-year commercial disqualification, resulting in the loss of his employment and approximately $69,368 in base wages, plus overtime and premium pay, plus employment benefits; (d) a three-year SR-22 financial-responsibility requirement running through approximately February

2028, with annual premiums of $281.28; (e) a $125.00 CDL reissue fee; (f) vehicle towing and impound fees; (g) continuing career harm from the disqualification event on his commercial-driving record; and (h) emotional distress, anxiety, humiliation, sleep disturbance, and reputational injury from having his professional reputation damaged by sworn statements that are materially contradicted by the recording.

36. Without the contradicted representations in the DS-367, DMV would have lacked the factual basis for the administrative-per-se suspension that stripped Plaintiff of his commercial driving privileges. The suspension and its downstream consequences -- the SR-22, the reissue fee, the commercial-record disqualification event -- are direct and foreseeable results of the execution of the DS-367 under penalty of perjury.

FIRST CAUSE OF ACTION

Fourth Amendment -- Judicial Deception and Unlawful Bodily Intrusion Under a Warrant Obtained Through Materially False or Misleading Statements
(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

37. Plaintiff re-alleges paragraphs 1 through 36.

38. An officer violates the Fourth Amendment by submitting a warrant application containing statements that are deliberately or recklessly false, or that omit material facts, if the application -- stripped of the false statements and supplemented with the omitted facts -- would not support probable cause. Franks v. Delaware, 438 U.S. 154, 155-56 (1978); Chism v. Washington State, 661 F.3d 380, 386 (9th Cir. 2011).

39. Defendant Meza-Gonzalez executed under penalty of perjury the DS-367 and arrest

report containing the four contradicted representations identified in paragraph 25 and the material omissions identified in paragraph 26. Those documents formed the basis of the warrant authorizing the involuntary extraction of Plaintiff's blood. When the contradicted representations are set aside and the omitted facts are restored, the remaining application does not plausibly support probable cause to believe Plaintiff was driving under the influence.

40. Defendant Meza-Gonzalez acted with at least reckless disregard for the truth. An officer who executes a sworn statement while a contemporaneous recording of the same encounter -- stored on his own patrol vehicle -- contains information materially inconsistent with that sworn statement acts with reckless disregard, at minimum. The right to be free from a warrant obtained through materially false or misleading statements was clearly established before November 1, 2024. Franks, 438 U.S. at 155-56; Chism, 661 F.3d at 386; Galbraith v. County of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002).

41. As a direct and proximate result, Plaintiff suffered a compelled blood extraction without valid probable cause, and the further damages alleged in paragraphs 35-36.

SECOND CAUSE OF ACTION

Fourteenth Amendment -- Deliberate Fabrication of Evidence
(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

42. Plaintiff re-alleges paragraphs 1 through 36.

43. The Fourteenth Amendment prohibits state actors from deliberately fabricating evidence and using it to bring about deprivations of liberty or property. Devereaux v. Abbey, 263 F.3d 1070, 1076 (9th Cir. 2001) (en banc). Qualified immunity is not available to officers who deliberately fabricate evidence. Costanich v. Dep't of Social & Health Servs., 627 F.3d 1101,

1115-16 (9th Cir. 2010).

44. Defendant Meza-Gonzalez executed sworn statements containing the four materially contradicted representations identified in paragraph 25. Those statements were used to obtain the blood-draw warrant, to sustain custodial confinement (including under a parole hold), to initiate and sustain the DMV administrative-per-se suspension of Plaintiff's Class A CDL, and to refer charges to the District Attorney.

45. Defendant Meza-Gonzalez knew, or in the exercise of reasonable care should have known, that the representations were materially inconsistent with the contemporaneous recording stored on his own agency's equipment. An officer who generates sworn statements containing factual assertions that his own recording does not corroborate -- and that the recording, on at least one point ("Beverage Present: Yes" versus contemporaneous identification of the liquid as urine), directly contradicts -- acts deliberately or with reckless disregard sufficient to state a fabrication claim.

46. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 35-36.

THIRD CAUSE OF ACTION

Fourth Amendment -- Unlawful Arrest and Detention
(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

47. Plaintiff re-alleges paragraphs 1 through 36.

48. The Fourth Amendment requires probable cause for a warrantless arrest. Probable cause exists when the facts and circumstances known to the officer at the time are sufficient for a

prudent person to believe that the suspect has committed a crime. Devenpeck v. Alford, 543 U.S. 146, 152 (2004).

49. At the moment of arrest (01:11:15-01:11:33), the facts known to the officers, as reflected on the recording, included: Plaintiff was parked and asleep when contacted; the only suspected "beverage" had been identified as urine; Plaintiff had spoken coherently and identified his location; no officer had verbalized an alcohol odor; Officer Melano had declined to administer certain FSTs due to ground conditions; and Plaintiff had exercised his statutory right to decline a test the officers had described as voluntary. No new observation or evidence intervened between the PAS refusal and the arrest.

50. CHP's subsequent issuance of the Penal Code section 851.6 Detention Certificate -- reclassifying the event as a detention for "insufficient grounds" -- and the Alameda County District Attorney's declination to file charges are consistent with and corroborative of Plaintiff's allegation that the arrest lacked probable cause.

51. The right to be free from arrest without probable cause was clearly established well before November 1, 2024. Beck v. Ohio, 379 U.S. 89 (1964); Devenpeck, 543 U.S. at 152.

52. As a direct and proximate result, Plaintiff was subjected to custodial confinement and has suffered the damages alleged in paragraphs 35-36.

FOURTH CAUSE OF ACTION

Fourth Amendment -- Unlawful Warrantless Entry

(42 U.S.C. § 1983 -- Against Defendant Melano and DOES 1-10)

53. Plaintiff re-alleges paragraphs 1 through 36.

54. A warrantless entry into a constitutionally protected area is presumptively unreasonable absent consent or a recognized exception. Payton v. New York, 445 U.S. 573, 585-90 (1980); Collins v. Virginia, 584 U.S. 586, 592-93 (2018). The interior of a passenger vehicle is a constitutionally protected area.

55. At 00:56:43, Defendant Melano opened the front passenger-side door of Plaintiff's vehicle while Plaintiff was asleep. No consent was given. No warrant existed. No exigent circumstance was present. The officers' own words on the recording preceding the entry ("It's a rental," "It wasn't here earlier," "I think it's booze") reflect investigative interest, not a response to an observable medical emergency. Even if a welfare rationale had been present, the community caretaking exception does not authorize warrantless entry absent an imminent threat to safety. Caniglia v. Strom, 593 U.S. 194, 197-99 (2021).

56. The right to be free from warrantless entry into a vehicle absent consent, exigency, or an applicable exception was clearly established before November 1, 2024. Payton, 445 U.S. at 585-90; Collins, 584 U.S. at 592-93; Caniglia, 593 U.S. at 197-99.

57. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 35-36.

FIFTH CAUSE OF ACTION

Fourth Amendment -- Unlawful Search

(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)

58. Plaintiff re-alleges paragraphs 1 through 36.

59. Following the warrantless entry, Defendants searched Plaintiff's vehicle -- including seizing and examining the cup from the center console area and searching additional portions of the cabin. No consent was given. No warrant existed. No exigent circumstance was present.

60. To the extent the search was justified by any suspicion arising from the visible cup, that suspicion dissipated when Officer Melano identified the cup's contents as urine (00:58:49-00:59:07). Continuing a search after the articulable basis for it has dissipated is unreasonable. Rodriguez v. United States, 575 U.S. 348, 355 (2015).

61. The right to be free from a warrantless search absent probable cause, consent, or an applicable exception was clearly established before November 1, 2024. Arizona v. Gant, 556 U.S. 332, 343-44 (2009); Rodriguez, 575 U.S. at 355.

62. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 35-36.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, as follows:

A. Compensatory damages against each Defendant in an amount according to proof at trial, including loss of liberty, physical pain and suffering from the compelled blood extraction, lost wages and lost earning capacity during the one-year commercial driving disqualification, continuing career impact, out-of-pocket expenses (SR-22 premiums, reissue fee, vehicle impound costs), and emotional distress, humiliation, and reputational injury;

B. Punitive damages against each Defendant in an amount sufficient to punish and deter;

C. Reasonable attorney's fees and costs pursuant to 42 U.S.C. section 1988;

D. Pre- and post-judgment interest; and

E. Such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff demands a trial by jury on all issues so triable.

Dated: August 7, 2026

Respectfully submitted,

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BRENDAN NGWA NFORBI

Plaintiff, In Pro Per